

Ratan Singh v. State of U.P.

Allahabad High Court · Division Bench · 13 January 2022 · WRIT - C No. 107 of 2022 · **Writ disposed; liberty to file a paragraph 6.5 objection; coercive action stayed for two months.**

HEADNOTE

A consumer challenged a demand notice of Rs.1,50,442 on the plea that the licensee had not supplied electricity. Without examining merits, the Division Bench disposed of the writ by relegating him to a paragraph 6.5 objection before the licensee, to be decided within one month of filing after hearing, and stayed coercive recovery for two months or until that decision, whichever was earlier.

FACTUAL SUMMARY

Ratan Singh petitioned the Allahabad High Court against a demand notice of Rs.1,50,442 issued by the electricity licensee (respondent No.2). His case was that electricity had not been supplied at all, yet the demand had been raised. Counsel for the licensee submitted that the petitioner could file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, which the licensee would decide after hearing him.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection as alternate remedy

HOLDING

Without expressing any opinion on merits, a writ challenging a demand notice on the plea that electricity was never supplied is disposed of with liberty to file a detailed objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, before the licensee within one month; the licensee shall decide it in accordance with law within the next one month after reasonable opportunity of hearing; coercive action on the demand is stayed for two months or until the objection is decided, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the demand notice was disposed without a merits adjudication, relegating the consumer to a paragraph 6.5 objection before the licensee as the statutory alternate remedy. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed demand of Rs.1,50,442 was left to be examined on a paragraph 6.5 objection, which the licensee was directed to decide after hearing within a fixed time. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ELECTRICITY HAD BEEN SUPPLIED AND WHETHER THE DEMAND OF RS.1,50,442 WAS LAWFUL

The Court expressly declined to opine on merits and left the objection to be decided by the licensee under paragraph 6.5. ¶ 1